

Telefonaktiebolaget Lm Ericsson ... vs Competition Commission Of India & Anr on 24 March, 2023

Author: Najmi Waziri

Bench: Najmi Waziri

\$~2 to 6 (Special Bench)

* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ LPA 246/2016

TELEFONAKTIEBOLAGET LM ERICSSON (PUBL)..... Appellant

Through: Mr. Sajan Poovayya, Sr. Adv
with Ms. Saya Choudhary Kap
Ashutosh Kumar, Mr.
Chauhan, Ms. Vrinda Bagaria
Radhika Pareva, Mr. Vivek R
Tiwary, Mr. Anand S. Pathak
Shashank Gautam, Ms. Sreemo
Deb, Mr. Rajat Moudgil, Mr.
Ravishekhar Nair, Mr. Sahil
Mr. Palash Maheshwari, Ms.
Agarwal and Mr. Abhishek Ka
Advocates.

versus

COMPETITION COMMISSION OF INDIA & ANR..... Respondents

Through: Mr. Avinash Sharma, Ms. Aka
Kapoor and Mr. Siddhant Cha
Advocates for CCI.
Mr. Avinash K. Sharma, Advo
R-2.

+ W.P.(C) 8379/2015

TELEFONAKTIEBOLAGET LM ERICSSON (PUBL)..... Appellant

Through: Mr. Sajan Poovayya, Sr. Adv
with Ms. Saya Choudhary Kap
Ashutosh Kumar, Mr.
Chauhan, Ms. Vrinda Bagaria
Radhika Pareva, Mr. Vivek R
Tiwary, Mr. Anand S. Pathak
Shashank Gautam, Ms. Sreemo
Deb, Mr. Rajat Moudgil, Mr.

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Ravishekhar Nair, Mr. Sahi
Mr. Palash Maheshwari, Ms.

Agarwal and Mr. Abhishek Ka
Advocates.

versus

COMPETITION COMMISSION OF INDIA Res

Through: Mr. Avinash Sharma, Ms. Aka
Kapoor and Mr. Siddhant Cha
Advocates for CCI.

+ LPA 247/2016

TELEFONAKTIEBOLAGET LM ERICSSON (PUBL)..... Appellant

Through: Mr. C.S. Vaidhyanathan
Advocate with Ms. Saya Chou
Kapur, Mr. Ashutosh Kumar,
Vinod Chauhan, Ms. Vrinda B
Ms. Radhika Pareva, Mr. Viv
Ranjan Tiwary, Mr. Anand S.
Mr. Shashank Gautam,
Sreemoyee Deb, Mr. Rajat Mo
Mr. Ravisekhar Nair, Mr. Sa
Khanna and Mr. Vinayak Goel
Advocates.

versus

COMPETITION COMMISSION OF INDIA & ANR..... Respondents

Through: Mr. Avinash Sharma, Ms. Aka
Kapoor and Mr. Siddhant Cha
Advocates for CCI.

+ LPA 150/2020

MONSANTO HOLDINGS PRIVATE LIMITED & ORS

.....
Through: Dr. Abhishek Manu Singhvi a
Raj Shekhar Rao, Sr. Advoca
Mr. Adarsh Ramanujan, Ms. B

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harma, Mr. Harman Singh San
Mr. Aman Singh Sethi, Mr. La
Kaushik, Mr. Luv Virmani, Ms
Mansi Sood, Mr. Areeb Amanul
Mr. Skanda Shekhar, Advocate

versus

COMPETITION COMMISSION OF INDIA & ORS..... Respondents

Through: Mr. Ruchir Mishra and Mr. Mu
Kr. Tiwari, Ms. Reba Jena Mi
Mr. Sanjiv Kumar Saxena, Adv
for UOI.

+ LPA 550/2016

COMPETITION COMMISSION OF INDIA

..... A
Through: Mr. Avinash Sharma, Ms. Akan
Kapoor and Mr. Siddhant Chau
Advocates for CCI.

versus

TELEFONAKTIEBOLAGET LM ERICSSON (PUBL) & ANR

..... Respondents
Through: Mr. Neeraj Kishan Kaul, Sr.
Advocate with Ms. Saya Choud
Kapur, Mr. Ashutosh Kumar, M
Vinod Chauhan, Ms. Vrinda Ba
Ms. Radhika Pareva, Mr. Vive
Ranjan Tiwary, Mr. Sajjan Sha
Prasad, Mr. Munesh Sharma, M
Swarnil Dey, Mr. Shaurya Pan
Mr. Anand S. Pathak, Mr. Sha
Gautam, Ms. Sreemoyee Deb, M
Rajat Moudgil, Mr. Ravisekha
Mr. Sahil Khanna, Ms. Pritha

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and Ms. Ira S. Ma

CORAM:
HON'BLE MR. JUSTICE NAJMI WAZIRI
HON'BLE MR. JUSTICE VIKAS MAHAJAN
ORDER

% 24.03.2023 The hearing has been conducted through hybrid mode (physical and virtual hearing).

1. The learned counsel for the parties have nothing further to add.
2. Judgment reserved.

NAJMI WAZIRI, J VIKAS MAHAJAN, J MARCH 24, 2023 RW